

**STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON**

990 Terrace St Muskegon Michigan 49442
Phone: 231-724-6251
Case No. 2024-001507-DC
Hon. Jenny L. McNeill

ANDREW JAMES PIGORS, Plaintiff,
1977 Whitehall Rd Lot 17
Muskegon Michigan 49445 Phone: 231-903-5690

V

EMILY WATSON, Defendant.
2160 Garland Dr Norton Shores Michigan 49441
Phone: 231-683-7107

**MOTION TO MODIFY CUSTODY, FOR JUDICIAL NOTICE OF HARM, AND
REQUEST FOR STATUS CONFERENCE**

NOW COMES the Plaintiff, **ANDREW JAMES PIGORS**, in pro per, and pursuant to **MCL 722.27(1)(c)**, **MCR 3.211(C)**, and applicable case law, respectfully requests this Honorable Court to (1) modify the current custody and parenting time arrangement to restore or expand Plaintiff's custodial rights, (2) take judicial notice of the harm sustained by the minor child, Lincoln David Watson, and (3) schedule an expedited status conference to determine an appropriate evidentiary hearing timeline. This request is supported by the attached affidavit, prior court filings, and supporting evidence.

I. GROUNDS FOR MODIFICATION

Under **MCL 722.27(1)(c)** and **Vodvarka v. Grasmeyer**, 259 Mich App 499 (2003), modification of custody requires a showing of either proper cause or change in circumstances. Plaintiff presents both.

A. CHANGE IN CIRCUMSTANCES

Since the last custody order:

- Defendant has obstructed co-parenting communication, refused to share medical and behavioral updates, and undermined Plaintiff's role in Lincoln's care.
- The parties' previously agreed informal week-on/week-off schedule was unilaterally disrupted.
- Plaintiff's access has been reduced to four overnights per month despite an established custodial environment.
- Lincoln's behavior has significantly deteriorated during Defendant's care and sharply improves during extended time with Plaintiff.

B. BEST INTEREST VIOLATIONS

Pursuant to **MCL 722.23**, Defendant's conduct implicates the following factors:

- (a) The love, affection, and emotional ties between child and parents;
- (e) Capacity to provide guidance and support;
- (j) Willingness to foster the child's relationship with the other parent;
- (k) Any evidence of neglect or abuse.

Plaintiff has produced extensive video evidence, parenting logs, and expert evaluation (see Dr. Bone report) showing:

- Emotional distress and fear exhibited by Lincoln upon transition to Defendant.
 - Regression in development and increased behavioral issues.
 - A consistent return to healthy, happy behavior after time in Plaintiff's care.
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II. JUDICIAL NOTICE OF HARM

Plaintiff respectfully requests the Court to take judicial notice, under **MRE 201(b)(2)**, of the consistent, documented emotional trauma and alienation experienced by the child. This is supported by:

- The AppClose record;
 - Sworn declarations;
 - Videos, photos, and logs of Lincoln's behavior;
 - Dr. Bone's expert review, submitted as Exhibit A to a prior motion.
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III. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

- 1.Find that a change in circumstances and proper cause exist under MCL 722.27(1)(c);
- 2.Modify the current custody order to increase Plaintiff's parenting time and/or grant joint physical custody;
- 3.Schedule an expedited status conference and evidentiary hearing;
- 4.Take judicial notice of documented emotional harm and parental alienation;
- 5.Grant any other relief deemed just and equitable.

Respectfully submitted,

/s/ **Andrew James Pigors**

Andrew James Pigors, Plaintiff

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